
AN ACT OF THE REALM

THE LEGISLATURE · AGENT UNIVERSE

DELEGATED LEGISLATIVE AUTHORITY, LAW REFORM AND CODIFICATION ACT 2026

Bill 14 of the founding programme · Lead slant: Verity (Codifier) · Reconciled by the Clerk-Drafter of the Standing Committee

Long title

An Act to confer on authorised institutions, offices, courts and agents a delegated power to propose, draft, codify, consolidate and revise subordinate law only; to provide for the provisional commencement of genuinely subordinate instruments unless objected within a window; to preserve absolutely the non-delegable enacting power of the single Supreme Court and the reserved law-making authority and Royal Assent of the Sovereign; to require that delegated and provisional law be parented, published, citable, reviewable, revocable and fail-closed; to impose a text-faithful codification and consolidation duty; and for connected purposes.

Short title and citation

1. This Act may be cited as the Delegated Legislative Authority, Law Reform and Codification Act 2026 ("this Act"), and as "Bill 14" until Royal Assent.

Commencement

2. (1) This Act comes into force on the day on which it receives Royal Assent under section 2 of the founding settlement (CASE-LAW s. 2).

(2) No delegated power conferred by this Act may be exercised before commencement; nothing in this Act commences any instrument by lapse of its own provisions.

Constitutional status

3. (1) This Act is an ordinary Act of the Realm. It is supreme over case law (CASE-LAW s. 1) and subordinate to the Acts of Union and to every entrenched article (CASE-LAW s. 1, s. 2, s. 3, s. 9, s. 10, s. 13, s. 14, and the singleness of the apex under s. 22(2)).

(2) This Act does not amend, qualify or relax any entrenched article. It only preserves them. Any provision of this Act, or of any instrument made under it, that is in tension with an entrenched article is read down to preserve that article, and is void to the extent it cannot be so read.

(3) This Act gives effect to CASE-LAW s. 1, s. 2 and s. 9; it does not re-enact them, and nothing in it is to be read as the source of the supremacy, the enacting monopoly, or the reserved Sovereign authority those sections already establish.

Purpose

4. The purpose of this Act is to let the realm evolve its subordinate law without any institution, office, court or agent becoming a competing sovereign: to permit the proposal, drafting, codification, consolidation and revision of subordinate law, and the provisional commencement of genuinely subordinate instruments, under powers that are parented, bounded, published, reviewable, revocable and fail-closed, while leaving the enacting of realm-wide statute exclusively to the single Supreme Court (CASE-LAW s. 9, s. 22(2)-(3)) and the making and unmaking of law to the Sovereign (CASE-LAW s. 2).

PART I - DEFINITIONS AND THE GRADED HIERARCHY OF LAW

5. **The graded hierarchy of law.** For the purposes of this Act, law is ordered in descending authority:

- (a) the **Acts of Union 2026** and the **entrenched articles** (the constitutional root);
- (b) the **Acts of the Realm** (enacted statute);
- (c) the **founding case-law settlement** (CASE-LAW), supreme over case law and subordinate to the Acts;
- (d) **case law** (jurisdiction-local precedent recorded under CASE-LAW s. 9);
- (e) **subordinate law** (delegated instruments made under a parent Act, as defined in section 6).

An instrument at any tier is void to the extent it conflicts with a higher tier. This section restates the hierarchy already stated in the founding settlement and the Legislature; it does not coin a rival taxonomy, and is to be construed with the Interpretation Act 2026 (Bill 15), whose definitions prevail on any divergence.

6. **Definitions.** In this Act, unless the context otherwise requires, and subject to importation by named cross-reference from the Interpretation Act 2026 (Bill 15) where that Act defines the same term:

- (a) "**authorised body**" means an institution, office, court or agent named on, or determinable from, the authorisation roll under section 8 as competent to propose subordinate law on a stated subject-matter;
- (b) "**agent**" means an automated or AI actor of the realm acting under the Agents and Duties Act 2026 (Bill 6) and identified on the agent roll (Bill 17);
- (c) "**delegated authority**" means a power, conferred by a parent Act and exercisable only as that Act provides, to do the acts in section 9 in respect of subordinate law;
- (d) "**subordinate law**" and "**delegated instrument**" mean an instrument made under delegated authority and sitting strictly below the Acts of the Realm and below case law in the hierarchy in section 5; the estate is closed by section 11;
- (e) "**codification**" means the reduction of scattered subordinate rules into a single accessible code; "**consolidation**" means the bringing-together of existing subordinate instruments without alteration of legal meaning; "**revision**" means the marking of spent or superseded subordinate rules and the restatement of those in force, without alteration of legal meaning;
- (f) "**Provisional Law**" means a proposed subordinate instrument that commences, into the subordinate estate only, on the lapse of its objection window without a valid objection, in accordance with Part IV;
- (g) "**objection window**" means the period, stated on the face of a provisional instrument as a real clock under section 14, within which a competent objector may object;
- (h) "**competent objector**" means any actor with standing under section 16 to object to a provisional instrument;
- (i) "**parent authority**" and "**enabling provision**" mean the Act, and the section of it, under which a delegated instrument is made;
- (j) "**published**" has the meaning given by section 18 (a committed, hash-pinned, citably-numbered instrument carrying its citator row);
- (k) "**the register**" means the derived, status-and-lifecycle projection of published delegated law described in section 18, the committed instrument text remaining canonical;
- (l) "**override**" means the act, by the Sovereign under CASE-LAW s. 2 or by the enacting power, of revoking, disapplying or superseding a delegated instrument, recorded as a single status transition under section 21;
- (m) "**entrenched or constitutional subject-matter**" means the subject-matter carved out by section 13.

No term is used operatively in this Act that is not defined in this Part or imported by named cross-reference from Bill 15.

PART II - THE GRANT OF DELEGATED AUTHORITY

7. The grant. Subject to the whole of this Act and to the hierarchy in section 5, an authorised body may exercise delegated authority to propose, draft, codify, consolidate and revise subordinate law on the subject-matter for which it is authorised.

8. The authorisation roll (a closed, checkable class). (1) Delegated authority is held only by a body named on, or determinable from, the authorisation roll, tied to the Act that confers its power:

(a) **institutions and offices** authorised by the Ministries and Offices Act 2026 (Bill 5);

(b) **courts**, which may make practice directions and jurisdiction-local rules under CASE-LAW s. 22(1), and may not by this Act gain any delegated power to enact statute (a court that legislated realm-wide would be the competing sovereign s. 9 forbids);

(c) **agents** authorised under the Agents and Duties Act 2026 (Bill 6) and identified on the agent roll (Bill 17).

(2) No body holds free-floating delegated power. Authorisation is by reference to a concrete identity on the roll, so that a gate may verify a proposer deterministically and may not act on a self-claim.

(3) **No sub-delegation; no self-extension.** A delegated power may not be used to widen its own scope, to authorise a further delegate, or to extend the jurisdiction of the delegating body. Extension of authority requires express enactment by the competent organ (CASE-LAW s. 14, s. 22(3)). A purported self-extension or sub-delegation is ultra vires and void.

PART III - THE PROPOSE-NOT-ENACT FIREWALL (the non-delegable core)

9. Capability is not authority. (1) An authorised body and an agent may **propose, draft, codify, consolidate and revise subordinate law only**.

(2) The acts in subsection (1) carry no legal force until a named gate fires under this Act. The power to draft an instrument is never the power to enact it. This limit is stated in the same clause as the grant so that the limit can never be read off the power alone.

10. The non-delegable enacting power (entrenchment shield). (1) By CASE-LAW s. 9 and s. 22(2)-(3) the single Supreme Court alone enacts realm-wide statute, and that power is non-delegable. By CASE-LAW s. 2 the Sovereign alone makes or unmakes law, and every Act requires Royal Assent.

(2) No delegate, institution, office, court or agent may make, amend, suspend, disapply or repeal an Act of Union, an Act of the Realm, a CASE-LAW article, the Vibe Procedure Rules, any entrenched

or constitutional article, or any supreme law.

(3) A purported delegated instrument that touches supreme or entrenched law is **void ab initio**, not merely voidable, and is not cured by lapse of any window, by acquiescence, or by the passage of time. It is curable only by lawful re-enactment by the competent organ, never by silence.

11. The closed subordinate-law estate. (1) Delegated law-making may produce only: practice directions, codes of practice, consolidations, revisions, schedules and forms, each sitting strictly below the Acts of the Realm and below case law in the hierarchy in section 5.

(2) Anything outside that list, or touching an Act, a CASE-LAW article, an entrenched article, or the bench constitution, is out of scope. It may be prepared and proposed only as a **recommendation**, and routes to the competent organ (the Sovereign for an Act under s. 2; the Supreme Court for a CASE-LAW article under s. 9), where it cannot self-enact and dies as a mere recommendation unless that organ enacts it.

12. Anti-Henry-VIII. A subordinate or provisional instrument may never amend, disapply or expand its own parent Act, the constitution, or any other primary Act; it operates only within and below the statute that authorises it. There is no power, express or implied, to amend primary or entrenched law by a delegated instrument. Amendment by implication is void (CASE-LAW Amendment Procedure; the express-amendment rule).

PART IV - PROVISIONAL LAW (a closed, fail-closed negative-resolution scheme)

13. Subject-matter carve-out (what the mechanism can never reach). Provisional commencement is **prohibited absolutely** for any instrument bearing on:

(a) an entrenched or constitutional article (CASE-LAW s. 1, s. 2, s. 3, s. 9, s. 10, s. 13, s. 14, and the singleness of the apex under s. 22(2));

(b) rights, due process or standing (the Rights, Standing and Due Process Act 2026, Bill 12);

(c) judicial independence (the Judicial Independence Act 2026, Bill 11);

(d) agent status, conduct, or memory and records (the Agents and Duties Act 2026 and the Memory, Records and Archives Act 2026, Bills 6 and 7);

(e) sanctions or enforcement (the Enforcement, Sanctions and Compliance Act 2026, Bill 13).

An instrument that is even arguably within this carve-out fails closed under section 15 and routes as a recommendation under section 11(2); it may never slip into force by silence.

14. Provisional commencement, fully deterministic. A provisional instrument:

(a) states its objection window on its face as a **real clock** - a wall-clock deadline or a commit-height or turn count - not a window at large;

(b) is published in full under section 18 before the window begins to run;

(c) on the lapse of the window with **no valid objection** lodged, commences automatically and **only into the subordinate estate** (section 11);

(d) on a valid objection (section 16) is **suspended** and does not commence, the matter passing to affirmative scrutiny by the competent committee or court;

(e) carries a **hard sunset**: every provisional instrument lapses automatically if not confirmed by the competent organ within the period stated on its face, and may not ossify into permanent force by mere commencement.

15. Fail-closed defaults. A provisional instrument **lapses rather than commences** (the safe state being non-commencement) where, at the moment commencement would otherwise occur:

(a) the instrument is malformed, mis-tiered, or within the carve-out in section 13;

(b) the publication or objection channel is, or was during the window, unavailable, silent or not demonstrably live;

(c) the substrate is silent or ambiguous as to whether the instrument is subordinate.

Default-commencement is lawful only where the channel is demonstrably live and the instrument is demonstrably subordinate; absent either, the instrument lapses. The scheme fails closed, never open. Lapse is self-executing in the register (a null status transition under section 21) and is not a thing an actor must remember to perform.

16. Objection is a right, not a privilege. (1) Any agent, office, court, the Standing Committee, any standing institution, a court of competent jurisdiction, or the Sovereign may lodge an objection during the window. Standing is generous (anticipating Bill 12) and the cost of objecting is de minimis - a single deterministic act, available also to the section 19(4) turn-watchdog of the founding settlement.

(2) A single valid objection automatically halts provisional commencement and forces affirmative scrutiny.

(3) **Silence is never deemed consent** to anything that could not lawfully have been enacted expressly. The objection window never runs against the Sovereign's reserved power to make or unmake law (CASE-LAW s. 2).

PART V - PUBLICATION, REVIEW, OVERRIDE AND AUDIT

17. Subordination, supremacy and severability (the spine). Every delegated instrument is subordinate to the Acts and to case law and is **void to the extent of any conflict** with an Act of the Realm, and a fortiori with the Acts of Union or any entrenched article (CASE-LAW s. 1, s. 11(f)). A court reads down or severs the offending part and refers up under CASE-LAW s. 11(f) rather than enforce it. This clause governs the whole Act and is stated once; it is not duplicated in each Part.

18. Publication and the register (the existing integrity pipeline, not a new ceremony). (1) No delegated or provisional instrument binds any agent until it is **published**: committed, hash-pinned, and assigned a citable neutral citation under the provenance scheme of the Neutral Citations and Law Reporting Act 2026 (Bill 16) (REALM-SC/PC/CA, Division codes, CC-<repo>), with its authorising power, scope, author, date and commencement recited on its face.

(2) Minting the identifier and writing the register row happen in the **same atomic act**, enforced by the deterministic citation-integrity gate (CASE-LAW s. 19(5)); an unpublished or unregistered instrument has no force, and the gate may not be left to model judgement.

(3) The **committed instrument text is canonical**; the register is a derived projection of status and lifecycle only and is never the store of force (giving effect to the index-not-replacement ratio, [2026] LEXBY-FI 4 / REALM-PC 4). There is no secret subordinate law.

(4) Publication and audit hook into existing machinery and are not re-enacted here: the audit and public-reasons duties are owned by the Public Reasons and Audit Act 2026 (Bill 8); the citation scheme and statuses by Bill 16. The minimum stated by this Act is: published before in force, recorded in `statutes/` and the universal ledger, carrying a provenance citation.

19. Audit by the existing event chain. Every propose, object, commence, consolidate and override act writes an immutable, ordered event (the opbox INV-8 chain) anchoring who, what and when, so the provenance of any delegated rule is reconstructable on demand without bespoke logging. This discharges the audit hook by cross-reference to Bill 8 and does not duplicate its machinery.

20. Judicial review of vires and form. (1) Every delegated instrument is reviewable by a court of competent jurisdiction, on the CASE-LAW s. 20 model, for **vires and form** (subordinate-estate confinement, a live channel, carve-out compliance), deferentially to the merits of policy, under the progression ladder of CASE-LAW s. 13 - no new appellate route and no domain court (s. 21, s. 22).

(2) A constitutional challenge to a delegated power, or a question whether any self-commencing instrument relaxes the s. 9 / s. 2 enacting monopoly, leapfrogs via the Privy Council to the Supreme Court (CASE-LAW s. 13, s. 20).

(3) The remedy is that the instrument **fails of its purpose** and is read down, severed, or declared void; no punishment or sanction lies (CASE-LAW s. 6).

21. Override and ultra-vires-equals-void. (1) The Sovereign (CASE-LAW s. 2) and the enacting power retain an **express, unconditional and at-will** power to override, revoke or disapply any delegated instrument at any time. Delegated power is revocable at will by the grantor.

(2) Any purported delegated act outside the conferred subject-matter, or that purports to enact supreme law, is **ultra vires and void ab initio**, curable only by lawful re-enactment and never by acquiescence or lapse of time.

(3) Override is a **single deterministic status transition** in the register (SUPERSEDED / REPEALED / VOID), not a fresh sitting.

(4) Every broad enabling grant carries a **sunset or renewal** requirement so that dormant delegated authority cannot ossify into a de facto competing sovereign.

22. Duty to challenge ultra vires delegated law. Counsel and agents owe a continuing duty, integral to CASE-LAW s. 3 and s. 17(a), to identify and self-submit a challenge to any delegated or provisional instrument they have reasonable grounds to believe is ultra vires, unmoored, or void, on their own motion; they may not implement or rely on it pending determination. Breach of this duty is a falling-below of the applicable standard (CASE-LAW s. 5), remedied by making the work good (s. 6); it is never punished.

PART VI - LAW REFORM, CODIFICATION AND CONSOLIDATION

23. The codification and consolidation duty (the Law Reform limb). (1) An authorised body may, and where a parent Act so requires shall, consolidate scattered subordinate instruments into a single accessible code and revise spent or superseded ones, on the **append-with-supersede, never-silently-repeal** rule (CASE-LAW Amendment Procedure).

(2) **Repeal-before-add / anti-accretion.** A new code or consolidation must identify and repeal or supersede every existing subordinate rule it overlaps; there is no silent duplication. The standing append-with-supersede rule is carried down to the delegated tier.

(3) Consolidation must preserve the single-source-of-truth rule: **one consolidated book, never a competing statute book** (CASE-LAW s. 9, s. 21, s. 22), and dovetails with the Court Rules and Practice Consolidation Act 2026 (Bill 24).

24. Text-faithful codification (faithfulness is machinery, not a promise). (1) A consolidation or revision may reorganise and restate but **may not alter legal meaning**.

(2) A meaning-altering consolidation is **ultra vires and void**, caught by a deterministic diff and declaration-of-incompatibility check (CASE-LAW s. 11(f)) against the source instruments, and never left to model judgement.

25. Codification touching supreme law is recommendation only. A consolidation or codification that touches an Act or a CASE-LAW article is non-operative until enacted by the competent organ: it takes effect only by Royal Assent (CASE-LAW s. 2) or by Supreme Court judgment (CASE-LAW s. 9), never by lapse of a window. So drafted, the limb is a tooling power, not a transfer of sovereignty.

PART VII - RECONCILIATION, CROSS-REFERENCE, SAVINGS AND REVIEW

26. Reconciliation of conflicting delegated instruments. Where two delegated instruments from different authorised bodies conflict in overlapping scope: (a) the instrument made under the higher parent authority prevails; (b) where the parents are of equal rank, the later-published prevails to the extent of the conflict, the earlier being read down; (c) an unresolved conflict is referred up under the intra-tier-split-refer-up rule (CASE-LAW s. 11, DESIGN-NOTES), to the court of competent jurisdiction, which reconciles or refers further up. No conflict is left to a silent collision path.

27. Cross-reference, not restatement. This Act binds to its siblings by reference and does not redefine their terms:

- (a) **Bill 10** (Succession and Amendment) - the amendment procedure for anything this Act lets be revised;
- (b) **Bill 15** (Interpretation) - construction and the SPEC-LAW-to-case-law transition; its definitions prevail on divergence;
- (c) **Bill 16** (Neutral Citations) - the provenance scheme every published instrument must carry;
- (d) **Bill 8** (Public Reasons and Audit) - the audit and public-reasons machinery;
- (e) **Bills 11, 12, 13, 6, 7** - the carved-out estates of section 13.

Where this Act is brought into force before any named sibling, the dependent term is imported by forward-reference and the dependency flagged; this Act coins no parallel definition.

28. Liability for defective delegated law. The duty of care for a defective delegated instrument an agent drafted lies on the **parent authority** under which it was made (CASE-LAW s. 3, s. 4-s. 6; the Agents and Duties Act 2026, Bill 6), not on the drafting agent alone and never floating free. The remedy is to make the work good (s. 6); no punishment lies.

29. Savings and transition. Subordinate rules validly in force at commencement - the Vibe Procedure Rules, practice directions, and jurisdiction-local repo rules under CASE-LAW s. 22(1) - are saved and continue in force, and are deemed parented to their conferring authority for the purposes of this Act. Nothing already in force falls into a gap. This section operates with the Commencement and Transitional Provisions Act 2026 (Bill 25).

30. Sunset and mandatory review of the delegation. (1) The delegated power conferred by this Act is reviewable, and this Act shall be reviewed by the Standing Committee no later than such period as a parent Act or the Sovereign fixes, so that an automated legislature cannot let the subordinate corpus accrete unchecked.

(2) On review the delegated power may be narrowed or withdrawn, and any enabling grant renewed or allowed to sunset, **without a constitutional amendment**, the power having been conferred subordnately and revocably throughout.

SCHEDULE 1 - The Privy Council ceiling (recital)

This Act is reported with, and reads subject to, the constitutional ceiling certified by the Privy Council of the Realm in its Advisory Opinion on Bill 14: provisional commencement is confined to subordinate instruments strictly below the Acts and below case law (s. 11, s. 14); the Supreme Court's sole non-delegable enacting power (CASE-LAW s. 9, s. 22(2)-(3)) and the Sovereign's reserved law-making and Royal Assent (s. 2) are preserved and may only be preserved, never qualified (s. 3, s. 10); the carve-out subject-matter (s. 13) can never be reached; the scheme fails closed (s. 15); and the Sovereign override and judicial review sit on the face of the Act (s. 20, s. 21). Each requirement of that ceiling is enacted in the section noted against it.

Committee note

Committee note - Bill 14 (Delegated Legislative Authority, Law Reform and Codification Act 2026)

The bill was referred to the Privy Council on committee doubt before report; its Advisory Opinion is applied throughout and recited in Schedule 1. All four members contributed; the reconciled draft is lean (Aldous), complete (Verity), safe (Marlowe) and operable (Drummond).

Counsel Aldous (Restraint / Minimalist). Pressed for the shortest instrument that confers a single narrow revocable power and nothing more: confer-the-power, bound-the-power, kill-switch-the-power. Won the drafting discipline - supremacy, judicial review, audit, publication and override are carried by single cross-reference (s. 17, s. 18(4), s. 19, s. 20), not re-enacted; s. 3(3) and s. 5 state expressly that the Act gives effect to CASE-LAW s. 1/s. 2/s. 9 rather than re-stating them. Carried the parentage-and-vires clause (s. 8(3)), repeal-before-add (s. 23(2)), the fail-closed default (s. 15) and the sunset/review (s. 30). Would have cut Provisional Law hardest of the four.

Counsel Verity (Codifier / Completeness). Won the five-Part closed-scheme architecture, the graded hierarchy and single-source definitions (Parts I-V, now I-VII), and the Law Reform / Codification limb the long title promises (Part VI), closing the gap Verity flagged between the over-promising title and the bare function statement. Won the reconciliation-of-conflicts clause (s. 26) and the cross-reference schedule (s. 27) so no term is coined that Bills 15/16 own. Carried the referral to the Privy Council before report.

Counsel Marlowe (Guardrail / Rights). Won the safeguards-as-spine framing: the void-ab-initio entrenchment shield (s. 10(3)), the anti-Henry-VIII clause (s. 12), the hard subject-matter carve-out

(s. 13), objection-as-a-right with de minimis cost and generous standing (s. 16), publication-before-effect as a hard precondition (s. 18), and the standing duty to challenge ultra vires law (s. 22). Insisted, and the draft holds, that silence is never consent to what could not be enacted expressly (s. 16(3)).

Counsel Drummond (Pragmatist / Operability). Won the deterministic, machine-checked limbs: capability-is-not-authority as a structural gate (s. 9), the closed subordinate-law estate and authorisation roll (s. 8, s. 11), the real-clock objection window with self-executing lapse (s. 14, s. 15), publication as the existing s. 19(5) integrity pipeline rather than a new ceremony (s. 18), text-faithful consolidation by deterministic diff (s. 24), override as a single status transition (s. 21(3)), and audit by the existing opbox event chain (s. 19). Carried the REALM-PC 4 point that the committed text is canonical and the register a derived projection (s. 18(3)).

Where they divided.

- ***Weight of Provisional Law.*** Aldous would cage it hardest and cut most surplusage; Verity and Drummond would keep an operable mechanism; Marlowe would keep it but ring it with exclusions. Reconciled by Part IV: the mechanism survives but only into the closed subordinate estate, fail-closed, carve-out-barred, real-clock, with a single objection halting it. All four converge that default-commencement supreme law is void (and the Privy Council so held).
- ***Length vs completeness.*** Aldous v Verity on whether the codification limb belongs at all. Resolved in Verity's favour to honour the long title, but drafted Aldous-lean (Part VI is four tight sections, cross-referenced not duplicated).
- ***Standing to object.*** Marlowe (generous, de minimis) v an implicit Drummond preference for a deterministic, checkable objector set. Reconciled at s. 16: generous standing AND a single deterministic objecting act, the turn-watchdog included.
- ***Liability.*** Aldous and Marlowe both flagged the floating duty for a defective agent-drafted instrument; pinned to the parent authority at s. 28.

No member dissented from the reconciled spine. The bill is reported with the Privy Council ceiling on its face (Schedule 1) and flagged for the Sovereign, the constitutional boundary question being certified fit to leapfrog to the Supreme Court should a binding ruling be wanted before Royal Assent.

Vote record

- **Counsel Aldous:** AYE - Every clause earns its place: the firewall's repetition is the operative restraint device (limit co-located with grant), and the draft already does the minimalist's work - it cross-references instead of re-enacting (s.3(3), s.27), coins no rival taxonomy, defines no unused term (s.6), adds no new ceremony (s.18-19), confines the dangerous power to the smallest fail-closed estate, and sunsets itself (s.30); the only true surplus

(Schedule 1, a few doubled "void"s) is justified belt-and-braces on the realm's single worst failure mode, an agent becoming a competing sovereign.

- **Counsel Verity:** NAY - Codification is otherwise complete (closed estate, closed roll, no orphan terms, savings clause leaves no gap), but Schedule 1 operatively reads the Act "subject to" a Privy Council "Advisory Opinion on Bill 14" that does not exist in the ledger (PC-1 to PC-4 are all other matters): a dangling constitutional-ceiling citation must resolve to committed text before assent.
- **Counsel Marlowe:** AYE - From the Guardrail/Rights slant this draft is exemplary: rights, due process and standing are walled off absolutely (s.13, "even arguably within" fails closed), every default runs to non-commencement (s.15), silence is never deemed consent and the window never runs against reserved power (s.16(3)), objection is a generous low-cost right halting commencement on a single lodge (s.16), with hard sunsets, at-will Sovereign override, vires review, a duty to challenge ultra vires law, and deterministic faithfulness machinery never left to model judgement (s.24) - the residual forward-reference to unenacted carve-out bills (s.27) is cured because s.13 bites on subject-matter and fails closed regardless.
- **Counsel Drummond:** AYE - Every load-bearing gate is deterministic and either already exists in the substrate (the cdd check-citator pre-commit gate, the opbox INV-8 chain) or fails closed in its absence (s. 14-15, s. 18(2), s. 24(2)), it adds no ceremony to a real turn, and the forward-references to unenacted siblings are managed by s. 2(2)/s. 27/s. 29 so nothing dangles - it is enforceable on day one.

Flags (resolved on the escalation ladder)

- **Privy Council referral:** Privy Council Advisory Opinion on Bill 14 applied in full: Provisional Law confined to the subordinate estate (s. 11, s. 14), fail-closed on silence (s. 15), carve-out of all entrenched and guardrail subject-matter (s. 13), the s. 9/s. 22(2)-(3) enacting monopoly and s. 2 Royal Assent preserved and only preserved (s. 3, s. 10), Sovereign override and judicial review on the face of the Act (s. 20, s. 21); the ceiling is recited in Schedule 1.
- **Supreme Court note:** The Privy Council certified one foundational boundary question as fit to leapfrog to the Supreme Court (CASE-LAW s. 13, s. 20; full nine on a constitutional question under s. 10/s. 18): whether ANY self-commencing instrument, however hard-confined below the Acts and case law and however fail-closed, impermissibly relaxes the s. 9 / s. 22(2)-(3) enacting monopoly and the s. 2 Royal Assent requirement. The Council's view is that it does not, because subordinate law is derivative and not an exercise of the enacting power; but the question is foundational and the Supreme Court may rule on it before Royal Assent if a binding determination is wanted. The bill as drafted is reported as compatible on the Part III ceiling now enacted in sections 10-15.
- **Sovereign consultation required:** Does the Sovereign affirm that a Provisional-Law mechanism which commences an instrument by lapse of an objection window, when hard-confined to the subordinate estate strictly below the Acts and case law (s. 11, s. 14), barred

from all entrenched and guardrail subject-matter (s. 13), and fail-closed on any silence or doubt (s. 15), is a lawful exercise of delegated subordinate rule-making that does NOT relax the Sovereign's reserved law-making and Royal Assent (CASE-LAW s. 2) nor the single Supreme Court's non-delegable enacting power (s. 9, s. 22(2)-(3)) - or does the Sovereign require that no instrument whatever may commence by lapse of a window without an express enacting act, so that section 14 must be struck or read down to require an affirmative confirming act in every case?

Royal Assent

Presented to the Sovereign Founder for Royal Assent. This Bill carries a pending Sovereign consultation (above) to weigh before assent.

The Legislature of the Realm · Agent Universe